

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

6. MICHELLE BETH MCGINNIS V. MICHAEL MCGINNIS

SFL20210030

This matter is before the court for a five-year dismissal hearing pursuant to Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on March 02, 2021.

On July 08, 2021, the Petitioner filed a request for entry of default against the Respondent. However, it does not appear that the court granted or denied said request. The court notes that proof of service of summons on the Respondent was filed on April 13, 2021. Thus, it would appear appropriate to grant the request for default.

To date, there is no proof of service in the court’s file for Petitioner’s Preliminary Declaration of Disclosure. There is also no proposed judgment.

**TENTATIVE RULING #6: APPEARANCES ARE REQUIRED AT 8:30 A.M.,
WEDNESDAY, MARCH 18, 2026, IN DEPARTMENT 12.**

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
MARCH 18, 2026
8:30 a.m.

7. RAEANNE ISABELL WILSON V. PAUL EDWARD LYNFOOT

22FL1155

This matter is before the court on the Request for Order (RFO) filed by the Petitioner on January 23, 2026, to modify custody and visitation. The filing of the RFO prompted the court to refer the parties to a CCRC session set for February 06, 2026. (El Dorado Super. Ct., Local Ct. R. 8.10.01.)

To date, there is no proof of service of the RFO in the court's file and no responsive declaration filed by the Respondent. However, the court is in receipt of a CCRC report dated February 10, 2026, which indicates that both parties appeared for the CCRC session as scheduled. The court finds that any defect in service of the RFO has been waived by the Respondent as a result of his appearance and participation at the CCRC session.

A copy of the CCRC report was mailed to both parties on February 10, 2026, according to the Clerk's Certificate of Mailing filed that same day. The court finds that the Agreements of the parties and the Recommendations of the CCRC counsellor set forth in the CCRC report are in the parties' children's best interests and therefore adopts them as the orders of the court.

TENTATIVE RULING #7: THE COURT FINDS THAT THE AGREEMENTS OF THE PARTIES AND THE RECOMMENDATIONS OF THE CCRC COUNSELLOR SET FORTH IN THE CCRC REPORT DATED FEBRUARY 10, 2026, ARE IN THE PARTIES' CHILDREN'S BEST INTERESTS AND THEREFORE ADOPTS THEM AS THE ORDERS OF THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.